

STATE OF NEW YORK
SUPREME COURT COUNTY OF BRONX
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DARIUS TROTMAN,

Plaintiff,

-against -

THE CITY OF NEW YORK, and POLICE
OFFICER LARRY JIMENEZ, in his individual
and official capacity as a Police Officer employed
by the City of New York

Defendants.
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: March 24, 2017
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 205
Flushing, NY 11358
(212) 695-5811

DEFENDANTS' ADDRESS:

City of New York, Office of the Corporation Counsel, 100 Centre Street, New York, NY 10007
Police Officers Larry Jimenez, 42nd Precinct
830 Washington Ave., Bronx, NY 10451

STATE OF NEW YORK
SUPREME COURT

COUNTY OF BRONX

-----X

DARIUS TROTMAN,

Plaintiff,

COMPLAINT

Index No.:

- against -

**THE CITY OF NEW YORK, and POLICE
OFFICER LARRY JIMENEZ,** in his individual
and official capacity as a Police Officer employed
by the City of New York

Defendants.

-----X

Plaintiff, by his attorney, ANDREW F. PLASSE & ASSOCIATES, LLC,
Attorney at Law, as and for his Complaint, hereby alleges and shows to the Court the
following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff Darius Trotman is an individual and resides at Bare Hill Correctional Facility, Malone, NY.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

4. Upon information and belief, and at all times hereinafter mentioned, defendant Police Officer Larry Jimenez was and now is a New York City Police Officer, who was employed with the New York City Police Department on the date of this incident.

5. At the time of the alleged incident and at all times pertinent hereto, the defendant Police Officer Larry Jimenez acted under color of State Law or a statute, ordinance, regulation or custom.

6. The District Attorney's ["D.A."] and Assistant District Attorneys of the Bronx County ["ADAs"] are agents and employees of the City of New York with offices at 198 E. 161st Street, Bronx, NY 10451.

7. Upon information and belief, the Bronx District Attorney is responsible under State law for making policy in the County of Bronx for the City of New York and is a policymaker for the City of New York by virtue of its conduct.

STATEMENT OF FACTS

8. On May 14, 2012 at approximately 2:10 a.m., Darius Trotman was arrested for allegedly committing the crime of Attempted Murder and Possession of a Weapon at 1255 Webster Ave., Bronx, NY.

9. Plaintiff was arrested for the crime on May 14, 2012 Police Officer Larry Jimenez.

10. After his arrest, Plaintiff remained in jail for twenty two months awaiting resolution of his criminal case.

11. On March 26, 2014, the charges were dismissed.

PLAINTIFF'S CLAIM

12. Upon information and belief, exculpatory material regarding the plaintiff's arrest was in the possession of the Bronx District Attorney's office and it failed to turn over such exculpatory evidence in a timely manner.

13. The failure to turn over Brady exculpatory material for twenty-two months was more than wrongful conduct by one ADA. It was perpetuated and ratified by high level officials in the Bronx District Attorney's Office, who tried to cover up the misconduct, and failing that, withheld additional exculpatory evidence.

14. This alleged misconduct by the Bronx District Attorney, by concealing exculpatory evidence, favoring the defense, has a long history and has been the subject of prior lawsuits.

15. Because the Bronx District Attorney is a policy maker for the City of New York with respect to the administration of that office, the unlawful policies and practices complained of in tolerating such misconduct was the moving force and proximate cause of the plaintiff's detention for five years and the City is therefore liable to the plaintiff pursuant to *Monell v. City of New York* and 42 U.S.C. Section 1983.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS POLICE OFFICER LARRY JIMINEZ, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-15" AND FURTHER ALLEGES AS FOLLOWS:

16. Upon information and belief, the actions taken as aforesaid by Defendant Police Officer Larry Jimenez was an unreasonable search and seizure in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

17. Upon information and belief, Defendant Police Officer Larry Jimenez, acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

18. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

19. That by virtue of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

**AS AND FOR A FIRST CAUSE OF ACTION, AGAINST DEFENDANT
CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES
EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS
MARKED AND ENUMERATED "1-15" AND FURTHER
ALLEGES AS FOLLOWS:**

20. Upon information and belief, the actions taken as aforesaid by Defendant Police Officer Larry Jimenez, and other to date unknown Police Officers who arrested the Plaintiff, constituted an unreasonable search and seizure and deprivation of liberty without due process of law.

21. Upon information and belief, Police Officers in the 42nd Precinct, have falsely arrested people, demanded sex acts from women under threat of retaliation against their families and coercing people into falsely identifying suspects for violent crimes.

22. For instance, in 2012, Detective David Terrell, filed false criminal complaints against individuals. Det. David Terrell was filmed by NBC News shooting dice with a group of young men, saying that he would release their friend that he arrested if he lost the game, but Det. Terrell lost and booked the man anyway on charge of playing music too loudly, which charge was alleged to be false.

23. For instance, upon information and belief, Salim Wilson was accused of murder by officers of the 42nd Precinct, but his case was dismissed by prosecutors after it was pending nearly for three years while he was in jail awaiting trial. The Case was dismissed on the basis that Officers in the 42nd Precinct had coerced witnesses into falsely identifying him and that prosecutors held onto the case for 33 months despite an alibi backed by video evidence.

24. Upon information and belief, the 42nd Precinct required its Officers to meet a quota of arrests at all times prior to the date of the arrest of the plaintiff herein.

25. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

26. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers.

27. At all times pertinent hereto, Defendants Police Officer Larry Jimenez and other unknown Police Officers who were involved in the arrest of Darius Trotman, were

acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the stop of the plaintiff and the plaintiff's subsequent injuries.

28. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Defendants Police Officer Larry Jimenez and other Police Officers involved in his arrest.

29. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-15" AND FURTHER ALLEGES AS FOLLOWS:

30. Upon information and belief, acting individuals on behalf of the Bronx District Attorney and ADAs withheld favorable material evidence from the plaintiff and his attorney, presented false and misleading testimony and argument against the plaintiff at his case, failed to correct such testimony and argument, acted to conceal the aforementioned wrongdoing from the plaintiff and his attorney, and perpetuated and ratified such misconduct during the trial of the plaintiff.

31. The Bronx District Attorney knows to a moral certainty that is employees, the Assistant District Attorneys and individuals acting on their behalf, will face a given situation; that the situation presents its employees with a difficult choice of the sort that training or supervision will make less difficult and that there is a history of employees

mishandling the situations; that the wrong choice by the City employee will frequently cause the deprivation of a citizen's constitutional rights and that the extent of such managerial inadequacies manifests deliberate indifference to the federal constitutional rights of the plaintiff.

32. The aforesaid conduct operated to deprive plaintiff of his rights under the Federal and State Constitution and the laws of the United States and New York State.

33. The Bronx District Attorney and ADAs failure to timely disclose for use at trial all material evidence favorable to his defense, pursuant to *Brady v. Maryland*, 373 U.S., 83 (1963); the Bronx District Attorney and ADAs used false or misleading testimony or argument knowingly and/or recklessly presented by prosecutors in violation of the Due Process Clauses of the Fifth and Fourteenth Amendments; the Bronx District Attorney and ADAs violated the plaintiff's right to a fair trial pursuant to the Fifth, Sixth and Fourteenth Amendment; the Bronx District Attorney and ADAs violated the Plaintiff's right to be free from an illegal search and seizure by arresting him with evidence that was exculpatory to him; as a result of the arrest, and the presentation of false evidence and/or failure to provide exculpatory evidence for twenty two months after his arrest, violated his Constitutional Rights.

34. The foregoing violated the plaintiff's constitutional rights by actions taken under color of State Law.

35. The foregoing violations of the plaintiff's constitutional rights were directly, proximately and substantially caused by conduct, chargeable to the City of New York, including the institution and implementation of unlawful policies, procedures, regulations, practices and/or customs concerning the continuing obligation to make

timely disclosure to the defense, before and during the trial of material evidence favorable to the defense; the duty not to present at trial false, misleading improper or unreliable evidence, testimony, statements or argument; the continuing obligation to correct false inaccuracies, incomplete or misleading evidence, testimony, statements or argument, whenever such acts occurred, and to remedy the harm caused by such acts, and deliberate indifference by policymaking officials at the Bronx DA office in its obligation to properly train, instruct, supervise and discipline its employees, including the ADAs involved in the prosecution of the plaintiff's case, with respect to such matters.

36. Upon information and belief, the Bronx District Attorney and its ADAs have a policy, express or implied, to permit and encourage its ADA's to withhold exculpatory evidence from defendants and its counsel, to cover up the withholding of exculpatory evidence, to orchestrate cover ups, to devise false versions of events, and that this policy has been indoctrinated into the Bronx District Attorney's Office so that ADAs in the course of their duty are more likely to withhold exculpatory evidence during the course of a trial.

37. Upon information and belief, the Bronx District Attorney and its ADAs has furthered and implemented this policy, by maintaining a system of review of its ADA's conduct, and had notice of, but repeatedly failed to make any investigations into, charges that employees were violating citizens' constitutional rights, which is so untimely and cursory as to be ineffective, and which permits and tolerates the withholding of Brady Material, and violations of the Constitution and deprivations of liberty without due process of law.

38. At all times pertinent hereto, the ADAs prosecuting the plaintiff herein were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the Bronx District Attorney's office. These systemic policies and practices which were enforced by the Bronx District Attorney's office were the moving force, proximate cause, and/or the affirmative link behind the conduct causing the withholding of Brady material, thereby resulting in the plaintiff's twenty-two months of incarceration and his resultant injuries.

39. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by the District Attorney of Bronx County, personally and through his authorized ADAs.

40. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action against defendant Police Officer Larry Jimenez in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

II. Judgment on the First Cause of Action against Defendant City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Second Cause of Action against Defendant City of New York in an amount which exceeds the jurisdictional limits of all lower courts which

would otherwise have jurisdiction;

IV. Judgment for Punitive Damages against Defendant Police Officer Larry Jimenez, in the amount of TEN MILLION [\$10,000,000.00] DOLLARS;

V. Together with the costs and disbursements of this action, for reasonable attorney's fees under the applicable Federal Statutes, and for such other and further relief as to this Court seems just and proper.

DATED: March 24, 2017
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 205
Flushing, NY 11358
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Darius Trotman, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Darius Trotman, is because he resides outside of the County of Queens, and is outside the principal location of my office which is located in Queens County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: March 24, 2017
 Flushing, New York



ANDREW F. PLASSE